Sau. Alka Shrikrushna Kaware And Others vs State Of Maharashtra Thr. Police ... on 5 February, 2020

Author: Madhav J. Jamdar

Bench: Sunil B. Shukre, Madhav J. Jamdar

IN THE HIGH COURT OF JUDICATURE AT BOMBAY,
NAGPUR BENCH, NAGPUR

CRIMINAL APPEAL NO. 862 OF 2019

1] Sau. Alka Shrikrushna Kaware,
Aged about 52 years,
Occupation-Household,
R/o. Anjani Khd. Tah. Barshitakli,
District-Akola.

2] Sau. Varsha Vijay Kaware,
Aged about 49 years,
Occupation-Household,
R/o. Anjani Khd. Tah. Barshitakli,
District-Akola.

3] Shrikrushna Nagorao Kaware,
Aged about 58 years,
Occupation-Agriculture,
R/o. Anjani Khd. Tah. Barshitakli,
District-Akola.

4] Vijay Shriram Kaware,
Aged about 57 years,
Occupation-Agriculture,
R/o. Anjani Khd. Tah. Barshitakli,
District-Akola.

5] Rajesh Nagorao Kaware,
Aged about 46 years,
Occupation-Agriculture,
R/o. Anjani Khd. Tah. Barshitakli,
District-Akola. .. Appellants
(In Jail)

.. Versus ..

State of Maharashtra,
Through Police Station Ofcer,
Police Station, Barshitakli,
Tahsil-Barshitakli, Distt. Akola. .. Respondent

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Shri Anil S. Mardikar, Senior Counsel with Shri Sumit G. Joshi,
Counsel for the Appellants.

Mrs. S. V. Kolhe, Additional Public Prosecutor for the
Respondent-State.

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CORAM : SUNIL B. SHUKRE AND
MADHAV J. JAMDAR, JJ.
DATED : 05th FEBRUARY, 2020.

JUDGMENT :

(Per : Madhav J. Jamdar, J.) 1] The appellants-original accused, by way of the present criminal appeal fled under Section 374 (2) of the Code of Criminal Procedure, 1973 have challenged the legality and validity of judgment and order dated 16.12.2019 passed by the learned Additional Sessions Judge, Akola in Sessions Trial No.13/2012. By the said judgment and order, the appellants were convicted for the ofence punishable under Section 302 read with Section 34 and 120-B of the Indian Penal Code for committing the murder of Vinod Manohar Pawar and all the appellants were sentenced to sufer rigorous imprisonment for life and to pay fne of Rs.3,000/- each, in default of payment of fne amount, they are further directed to undergo simple imprisonment for the period of two months. The appellants are further convicted for the ofence punishable under Section 201 read with Section Judgment 3 CRIMINAL APPEAL NO.862.19.odt 120-B of the Indian Penal Code and are sentenced to sufer rigorous imprisonment for 3 years and to pay fne of Rs.2,000/- each, in-default of payment of fne amount, they are further directed to undergo simple imprisonment for the period of one month.

2] It is the prosecution case that on 12.10.2011 Shri Manohar Ramdas Pawar, the father of deceased Vinod Manohar Pawar, resident of Ajani Khd., Tah. Barshitakli, Dist.Akola lodged complaint against the appellants at Barshitakli Police Station, stating that accused Alka on 11.10.2011 at about 9.00 to

9.30 pm, by making phone call to deceased Vinod Manohar Pawar had called him to her house and all the appellants by strangulating him had killed him and made show that he had committed suicide. During the course of investigation, the investigating ofcer recorded the statements of various persons which revealed that deceased Vinod was having illicit relations with Alka i.e. appellant no.1 and, therefore, her husband Shrikrushna Nagorao Kaware i.e. accused no.3 and his relatives i.e. accused nos.2, 4 and 5 were having grudge on the deceased. They had threatened him that they would kill the deceased. Therefore, accused Alka called Vinod to their house by giving him phone call and, thereafter, they strangulated his neck by their hands, legs, Judgment 4 CRIMINAL APPEAL NO.862.19.odt elbow and killed him. They hanged him with the rope in the house of accused Alka to make show that the deceased Vinod hanged himself. The investigating ofcer, during investigation seized rope and sickle from the spot of incident. He also sought report as to the cause of death of the deceased from the doctor, who conducted the postmortem on the dead body of the deceased. From the postmortem report it transpired that the hyoid bone of the neck of the deceased was fractured and there were blood clots on the right side of his neck. The doctor gave opinion that the death of deceased was caused as he was strangulated by hands, legs and elbow. On the basis of the investigation carried out by the investigating ofcer the charge-sheet came to be fled against the accused. The charge was framed by the learned Trial Court on 21.01.2012. During trial, the prosecution examined ten witnesses. After the evidence of the prosecution is over, the statements under Section 313 of the Code of Criminal Procedure of the accused were recorded. The defence examined doctor, who treated the deceased at the hospital, as their witness. After hearing the arguments, the learned trial Judge has passed the order of conviction and also awarded sentence, as set out earlier hereinabove.

3] We heard Shri Anil S. Mardikar, the learned Senior

Counsel for the appellants-accused and Mrs. S.V. Kolhe, the learned Additional Public Prosecutor for the respondent-State. 4] The learned Senior Counsel appearing for the appellants-accused argued at length. His main thrust of the argument is that the present case is of circumstantial evidence and none of the circumstances which are alleged against the appellants have been proved. The learned Senior Counsel submitted that the main circumstances alleged by the prosecution are love afair between the accused no.1 and the deceased, the relatives of accused no.1 had grudge against the deceased, presence of the accused on the spot and the medical evidence. The learned Senior Counsel submitted that none of the circumstances are conclusively proved. He relied on the evidence of defence witness i.e. doctor, who treated the deceased at the hospital and on the basis of the same attacked the evidence of PW-5 who performed postmortem. He further relied on the chart which is on page 456 of the well-known commentary i.e. Modi's Textbook of Medical Jurisprudence and Toxicology (24 th Edition-2011). The said chart mentions various prominent features which can be seen in hanging and strangulation. The learned senior counsel submitted that the evidence on Judgment 6 CRIMINAL APPEAL NO.862.19.odt record clearly show that this is a case of suicide by hanging. The learned senior counsel lastly submitted that in any case the appellants are entitled for beneft of doubt as prosecution has failed to prove exactly who amongst the accused committed the

murder of the deceased, assuming the same to be so and, therefore, the appeal is required to be allowed and appellants are required to be set free.

5] The learned Additional Public Prosecutor for the respondent-State, on the other hand, supported the judgment and order passed by the learned trial Court. The learned APP pointed out that the circumstances on record namely love afair/illicit relationship between the deceased and accused Alka, due to said love afair/illicit relationship, accused Shrikrushna i.e. husband of accused Alka and his relatives i.e. other accused were having grudge against the deceased, the accused Alka between 9.00 to 9.30 pm on 11.10.2011 by making phone call on mobile called the deceased to her house just before the incident took place, accordingly, the deceased went to the house of the accused, within short time the deceased was found hanging in the house of accused Alka, accused Alka went to the place where PW-2 and other friends of the deceased gathered for celebrating Kojagiri and informed them that the deceased was found hanging at her Judgment 7 CRIMINAL APPEAL NO.862.19.odt place, all the accused were present at the spot of the incident and accused nos.3 to 5 ran away as soon as the PW-2 came at the spot, the spot of incident is inside the house of accused Alka and, therefore, no stranger could have witnessed the incident, the circumstances as are emerging from the inquest panchanama, spot panchanama and postmortem report are the circumstances which connect the accused to the crime and the same clearly show that the appellants committed murder of deceased and then made show that the deceased had committed suicide by hanging and argued that the evidence on record clearly establishes conclusively all the circumstances. Thus, the learned APP supported the fndings recorded by the learned trial Court and submitted that, therefore, no interference is required in the judgment of the learned Additional Sessions Judge, Akola. 6] With the assistance of the learned Senior Counsel, who appeared on behalf of the appellants as well as learned Additional Public Prosecutor, we have perused the depositions of various witnesses and gone through the evidence, statements recorded under Section 313 of the Code of Criminal Procedure and evidence of the defence witness and also the judgment and order of the learned trial court.

7] Before considering the evidence on record, we

deem appropriate to set out the legal position regarding the manner in which the evidence in case of circumstantial evidence is to be appreciated. In the well known judgment in the case of Sharad Bridhichand Sarda .vs. State of Maharashtra, reported in AIR 1984 SC 1622, the Hon'ble Apex Court laid down following principles for deciding the case based on circumstantial evidence:

> (i) the circumstances from which the conclusion of guilt is to be drawn should be fully established;
>
> (ii) the facts so established should be consistent only with the hypothesis of the guilt of the accused, that is to say, they should not be explainable on any, hypothesis except that the accused is guilty;

(iii) the circumstances should be of a conclusive nature and tendering;

(iv) they should exclude every possible hypothesis except the one to be proved; and

(v) there must be chain of evidence so complete as not to leave any reasonable ground for the conclusion consistent with the innocence of the accused and must show that in all human probability the act must have been done by the accused.

8] Thus we will have to analyze the evidence on record by keeping in mind the above principles laid down by Judgment 9 CRIMINAL APPEAL NO.862.19.odt the Hon'ble Apex Court for deciding the case based on the circumstantial evidence.

9] As per the submissions of the learned APP, following circumstances forms complete chain so as to establish that the appellants had committed the murder of deceased Vinod Manohar Pawar:

i] First Circumstance : Love afair/illicit relationship between the deceased and accused No.1 Alka;

ii] Second Circumstance : Due to said love afair/illicit relationship, accused Shrikrushna i.e. husband of accused Alka and his relatives i.e. other accused were having grudge against the deceased;

iii] Third Circumstance : The accused Alka between 9.00 to 9.30 pm on 11.10.2011 by making phone call on mobile called the deceased to her house just before the incident took place;

iv) Fourth Circumstance : The deceased went to the house of the accused;

v) Fifth Circumstance : Within short time the deceased was found hanging in the house of accused Alka;

vi) Sixth Circumstance : Accused Alka went to the place where PW-2 and other friends of deceased gathered for celebrating Kojagiri and informed them that the deceased was found hanging at her place;

vii) Seventh Circumstance : All the accused

were present at the spot of the incident and as soon as the PW-2 and Shivaji Rathod arrived at the spot, accused nos.3 to 5 ran away.

viii) Eighth Circumstance : The spot of the incident is inside the house of the accused Alka and, therefore, no stranger could have witnessed the incident;

ix) Ninth Circumstance : The circumstances as are emerging from the inquest panchanama, spot panchanama and postmortem report.

10] The prosecution to establish frst seven circumstances, examined father of the deceased as PW-1 Manohar Ramdas Pawar and friend as well as cousin of the deceased as PW-2-Gopichand Mohan Pawar. The prosecution also examined PW-4 - Sayyad Amin Sayyad Yakub regarding seizure of mobile pursuant to statement recorded under section 27 of the Evidence Act of the accused Alka, PW-6 Arun Amrutrao Gopanarayan, working as writer of PSO and PW-8-

Devidas Raghunath Bhoj, Police Inspector and PW-9- Aditya Pradip Nimbalkar, Nodal Ofcer of Vodafone India Limited. 11] PW-1 Manohar Ramdas Pawar, who is the father of the deceased, stated that on 11.10.2011 at about 10.00 to 10.30 pm, his cousin Nagorao Gulab Pawar came and Judgment 11 CRIMINAL APPEAL NO.862.19.odt informed him that the deceased had strangulated himself in the house of accused Alka. The friends of deceased namely Shivaji Gokul Rathod and Gopichand Mohan Pawar went to the house of Alka and noticed that deceased Vinod was hanging with rope in his neck. They cut of the rope and put him down. At that time, Vinod was alive. Both of them brought Vinod to Akola in auto-rickshaw and admitted him in the Main Hospital. PW-1 also immediately went to the Main Hospital with his younger son Dipak and they reached there at about 12.30 in the night. By that time deceased Vinod was declared dead by the Doctor. PW-1 further stated that he made enquiry with said Shivaji Gokul Rathod and Gopichand Mohan Pawar about the incident and they informed him that when they went to the house of Alka and were taking Vinod outside the house, three male persons and two females were present in the house, who are the accused in the present crime. Shivaji Rathod further told him that deceased Vinod had received phone call from Alka. PW-1 further stated that his daughter-in- law Nisha i.e. the wife of deceased, told his wife that accused Alka used to frequently make phone calls to deceased Vinod and his wife had informed him about the same. He further stated that therefore they tried to give understanding to Alka on 2-3 occasions and since then all the accused were having grudge against his son deceased Vinod. He identifed the Judgment 12 CRIMINAL APPEAL NO.862.19.odt accused present before the court. In the cross-examination of PW-1 Manohar Pawar, he admitted about the omissions in his statement particularly regarding that in the house of the accused Alka, three women and two male persons were present. He also admitted about the omissions regarding giving understanding to accused Alka on 2-3 occasions. 12] Gopichand Mohan Pawar is examined as PW-2. He is the cousin of the deceased as well as his friend. He stated that on 11.10.2011 there was festival of Kojagiri. He stated that at about 9.00 to 9.30 pm, he was present in front of the house of Bramhadas Tejrao Jadhav along with his friends by name Shivaji Gokul Rathod, Dinesh Chavan, Arjun Pawar and at that time the deceased came there while talking on mobile phone. The deceased told them that he had received phone call from accused Alka and, thereafter, he went away while talking on mobile

phone. PW-2 further stated that after somtime, accused Alka came there and told them that Vinod had hanged himself inside her house. After hearing this, PW-2 along with Shivaji Rathod hurriedly went to the house of accused Alka and noticed that deceased was hanging with a rope to the roof of the outhouse and his knees were touching to the ground. He also noticed that rope tied with the wooden rafter of the roof was around his neck. At that time, accused Judgment 13 CRIMINAL APPEAL NO.862.19.odt Alka and Varsha were present. Accused Alka gave a sickle to Shivaji Rathod and he cut the rope tied to the rafter. PW-2 further stated that he lifted Vinod before he fell on the ground. At that time, Vinod was breathing, however, he was not in a position to talk. He and said Shivaji brought Vinod out of the house and they noticed that accused Shrikrushna Kaware, Vijay Shriram Kaware and Rajesh Nagorao Kaware fleeing away from the house. Immediately Shivaji went to the place where other friends were there. They had gathered for celebrating kojagiri function. He brought Dinesh Chavan and Atul Pawar at the place of the incident and, thereafter, all of them brought Vinod up to the bye-pass road and, thereafter, auto-rickshaw was brought and PW-2, with the help of Dinesh Chavan, Atul Pawar and Shivaji Rathod brought Vinod to Government Hospital at Akola and Vinod expired during medical treatment. He also stated that deceased Vinod had disclosed to them that he was having love afair with accused Alka. He further deposed that on that count Vinod was killed by the accused persons. In the cross-examination, he stated that he do not recollect whether the fact that Vinod was having love afair with accused Alka was disclosed by him to them was narrated by him to the police.

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13] The PW-4 - Sayyad Amin Sayyad Yakub is the

panch witness regarding seizure of mobile pursuant to the statement of the accused Alka recorded under Section 27 of the Evidence Act. However, he was declared as hostile. The PW-6-Arun Amrutrao Gopnarayan was working in Police Station, Barshitakli at the relevant time as a writer of P.S.O. of Shri D.R. Bhoj, the then P.S.O. The memorandum statement of accused no.1 Alka was written by him and he has deposed that the said memorandum statement was written as per say of accused no.1 Alka and bears the signature of accused no.1 Alka and Shri Bhoj and panchas. He further deposed that accused no.1 Alka in her statement stated that one mobile was concealed in her house and she would show the same and accordingly the said mobile was seized from her house at her instance. The said memorandum of statement is at Exh.100 and panchanama of seizure mobile is at Exh.101. Thus, although the panch witness i.e. PW-4 has turned hostile, the said memorandum of statement at Exh.100 and panchanama of seizure of mobile at Exh.101 is proved by PW-6 as also by PW-8-Devidas Raghunath Bhoj, Police Inspector. PW-8 has also stated that in the mobile seized at the instance of accused no.1 Alka, simcard having no.9657053115 was found. He has further stated that during course of investigation it was revealed that accused no.1 Alka Judgment 15 CRIMINAL APPEAL NO.862.19.odt used to call deceased on his mobile number 9657053165. He has admitted in the cross-examination that he has not seized the mobile of deceased during the investigation. 14] PW-9-Aditya Pradip Nimbalkar, who is the Nodal Ofcer of Vodafone Idea Limited, stated that as far as mobile no.9657053115 is concerned, the simcard was in the name of Vinod Pawar having address at Ajni Kd., Bhag No.1, Tahsil- Barshitakli, District-Akola. Thus, it is

established that the deceased had given the said mobile to the accused no.1 Alka. PW-10-Prashant Wasudeo Patil was working with Cyber Cell, S.P. Ofce, Akola and he has produced C.D.R. pertaining to said mobile number. The same are produced at Exh.127, 128 and 129. The Section 65B Certifcate is produced at Exh.130. The said C.D.R. pertaining to mobile no.9657053115 shows that there are about fve calls made from said mobile number to mobile no.919657053165 from 20.58 to 21.15 on 11.10.2011 and six calls were made from the mobile no.919657053165 to mobile no.9657053115 from 21.11 to 21.24 on 11.10.2011. Thus it is clear that from 20.58 to 21.24 i.e. within a span of 26 minutes, there were 11 calls made between these cell numbers.

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15] Thus, the evidence on record conclusively establishes that there was love afair/illicit relationship between the accused no.1 and the deceased and there are several cell phone conversations between them. However, it is to be noted that the prosecution has failed to produce on record the actual conversation which took place between the deceased and accused Alka and, therefore, it cannot be said that the prosecution has conclusively established that the accused Alka by making phone call on mobile called the deceased to her house just before the incident took place. However, it is proved that after about eleven calls between the accused Alka and the deceased, the deceased went to the house of the accused Alka. It is also established that within short time the deceased was found hanging in the house of accused Alka and that immediately accused Alka went to the place where PW-2 and other friends of deceased were present and informed them that the deceased was found hanging at her place.

16] It is, however, to be noted that there is no adequate and conclusive evidence to establish that due to said love afair/illicit relationship between the accused no.1 Alka and deceased Vinod, accused Shrikrushna i.e. husband of accused Alka and his relatives i.e. other accused were Judgment 17 CRIMINAL APPEAL NO.862.19.odt having grudge against the deceased. It is true that there is very high probability that the accused no.3-Shrikrushna i.e. husband of accused no.1 Alka and his other relatives would have grudge against the accused in view of said illicit relationship between the deceased and the accused no.1 Alka, however, there is no adequate and conclusive evidence to establish the same. There is no evidence of any earlier instance of giving threats to the deceased by accused. It is to be noted that even if there is grave probability or very grave doubt regarding this aspect still the same cannot be considered as adequate and conclusive evidence regarding the same. It is well established that suspicion, however, great it may be, cannot take the place of legal proof. Therefore, we hold that this circumstance is not established. 17] The next circumstance is presence of all the accused at the spot of the incident and as soon as the PW-2 and Shivaji Rathod arrived at the spot, accused nos.3 to 5 ran away. In this behalf the only evidence relevant is of PW-2-Gopichand Mohan Pawar. We have in detail discussed his evidence in earlier part of the judgment. As regards this aspect he has stated that when accused no.1 Alka informed him and his friends that the deceased had hanged himself inside her house, PW-2 along with Shivaji Rathod hurriedly Judgment 18 CRIMINAL APPEAL NO.862.19.odt went to the house of accused Alka and noticed that deceased was hanging with a rope to the roof of the outhouse and his knees were touching the

ground. At that time, accused Alka and Varsha were present and further he noticed that accused Shrikrushna Kaware, Vijay Shriram Kaware and Rajesh Nagorao Kaware fleeing away from the house. There is no cross-examination of the PW-2 on this aspect. In any case, even if the prosecution case is accepted that all the accused strangulated the deceased and then made show that the deceased committed suicide by hanging and then the accused no.1 Alka rushed to the place where friends of deceased namely PW-2 and others were gathered and informed them that the deceased hanged himself, then also it is unnatural that till the arrival of PW-2 and Shivaji Rathod, the accused nos.3 to 5 would remain present at the spot and accused nos. 3 to 5 would run away after arrival of PW-2 and Shivaji Rathod. The said conduct is not natural conduct as PW-3 to 5 had adequate opportunity to run away from the spot immediately after the incident when accused no.1 Alka approached PW-2 and other friends of the deceased to inform them about the said incident. Therefore, the evidence on this aspect is not completely believable and in any case, the said circumstance is not completely established and, in any case, it is not safe to rely on the said circumstance.

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18] For the reasons set out herein-above, we hold that

the prosecution is successful in conclusively establishing First Circumstance, Fourth Circumstance, Fifth Circumstance and Sixth Circumstance, however, we further hold that the prosecution failed to conclusively establish Second Circumstance, Third Circumstance and Seventh Circumstance.

19] The eighth circumstance as contended by the prosecution is that the spot of the incident is inside the house of the accused and, therefore, nobody could see the incident. The prosecution to prove the said circumstance, has relied on the evidence of PW-3-Nagorao Baban Chavan, who is the panch witness of spot panchanama, which is at Exh.76. The spot panchanama at Exh.76 clearly shows that although the incident in question has taken place in the house where accused no.1 Alka was staying, still the said spot panchanama specifcally states that the spot of the incident is 'osari' i.e. varandah (porch). The said osari ad-measures 21 x 17 ft. having tin shed constructed by giving support of wooden poles. The distance between the said tin roof and the floor of the osari is 6 ft. The house of accused Alka is adjoining the osari to the west side and to the east side is Judgment 20 CRIMINAL APPEAL NO.862.19.odt open ground and, thereafter, road. Thus, the spot of the incident clearly shows that the said osari can be seen from the road. The panchanama further shows that to the west side of the said house, there is temple of Bajrangbali, to the north of the said house is Zilla Parishad School, to the south side is road and after that house of Prakash Kaware and to the east side is road and, thereafter, cattle shed of accused no.1 Alka. The PW-3-Nagorao Baban Chavan, the panch witness of spot panchanama (Exh.76), admitted in the cross- examination that the spot is the open osari of the house and in front of osari, there is a public road. Thus the said position of the spot of the incident makes it very clear that although the said osari is part of house of the accused no.1 Alka, still the same is not enclosed portion and is outside the house and anybody can have view of the

same from the road. The Zilla Parishad School, temple and two roads are forming part of the boundaries of the said house and, therefore, it cannot be said that the incident has taken place inside the house of the accused Alka i.e. secluded place and, therefore, the same cannot be viewed by anybody. It is also signifcant to note that although two roads and one temple are adjoining the said house, it is not the case of the prosecution that any stranger has heard any noise or shouts of the deceased.

Therefore, we hold that the prosecution has failed to prove the eighth circumstance conclusively.

20] The ninth circumstances relied by the prosecution are the circumstances emerging from the inquest panchanama, spot panchanama, postmortem report and the evidence of PW-5-Dr. Dipak Vijayrao Gulhane, who has performed the postmortem of deceased. The inquest panchanama is at Exh.117 and the postmortem report is at Exh.89. As far as the spot panchanama Exh.76 is concerned, we have already discussed the relevant contents of the same hereinabove. The PW-5 - Dr. Dipak Vijayrao Gulhane, in his deposition, has stated that he along with his senior Dr. S.N. Hussain conducted the postmortem. In his deposition he further stated as follows:

> "We noticed following features of dead body:
>
> (1) Mouth appears livid and congested, eyes slightly opened, pupils dilated and conjunctiva congested. Mouth partially opened with tongue inside mouth. Mouth and nostrils shows blood tinged forth oozing out.

2. On examination no injury and ligature marks or abrasion of ligature over neck or any other injury externally or any part of body detected.

3. In respect of thorax, I noticed that after reflecting skin and platysma from neck region and after reflecting sternocleidomastoid and posterior belly of omohyoid muscle, stemo-hyoid, stemo- thyroid and thyroid muscle of right side shows difuse haematoma intersecting fybers of said muscle on both right and left sides and on right side externally heamotamo into the muscle fbre attached to greater cornue of hyoid bone. After reflecting the muscle fbre underlying greater cornue of hyoid bone shows fracture on right side along with haemotoma at the ends of fractured bone with outward displacement of fractured bone. Underlying trachea intact with congested mucosa and flled with whitish coloured blood tinged froth. Trachea cartilages intact.

4. On postmortem of the deceased, we found that the cause of death of the deceased was due to compression neck. However, viscera were preserved for chemical analysis."

21] PW-5 Dr. Dipak Vijayrao Gulhane proved postmortem report at Exh.89 in his evidence. His opinion dated 12.10.2011 at Exh.90 and opinion dated 13.10.2011 at Exh.91 are further proved by him. According to him, this case is case of compression of neck and not hanging. He has further stated that he has arrived at that opinion as there was no ligature mark on skin and subcutaneuous tissue along with Judgment 23 CRIMINAL APPEAL NO.862.19.odt there were muscle haematoma and fracture of greater cornue of hyoid bone which is more suggestive of compression of neck. As per his opinion this injury can happen due to compression of neck by hand or elbow or sole of feet or knee joint or any hard blunt smooth object. He has further opined that there is possibility of involvement of more than one person and that the injuries are not possible by hanging the person by means of rope. PW-5, in the cross-examination, admitted that he had not gone through the bed-head ticket. He admitted that the deceased expired on 12.10.2011 at 12.43 am and the postmortem was conducted at 2.50 pm. He further admitted that in the injuries, which are reflected in the postmortem report, the death is immediate and instant. He tried to explain the ligature marks shown in the bed-head ticket by saying that patient was seen by intern doctor in casualty department and, therefore, simple red congestion can be mistakenly taken by him as ligature mark. He further tried to explain the remark on bed-head ticket that patient was having history of hanging with alcoholic intoxication by mentioning that the diagnosis was provisional and the time taken for assessment was one hour which was insufcient to decide fnal diagnosis. He further admitted that mistakenly time of starting postmortem and conclusion of postmortem is mentioned as one and the same i.e. 2.50 pm. Most of the Judgment 24 CRIMINAL APPEAL NO.862.19.odt relevant contents of the postmortem report are mentioned in the evidence of PW-5 and the same are referred hereinabove. The some of the important aspects as seen from the postmortem report are as follows:

13 Features - Whether Mouth appears livid and natural or swollen, congested. Eyes slightly state of eyes, opened. Pupils dilated and position of tongue: flexed conjuncture congested.

	nature of fluid (if any) oozing from mouth, nostrils of ears.	Mouth partly opened with tongue inside mouth. Mouth and nostrils shows blood tinged froth oozing out.
14	Condition of skin - Marks of blood etc. in suspected drowning the presence or absence of cutes anserina to be noted.	Nails-bluish.
17	Surface wounds and injuries - Their nature, position, dimensions (measured) and directions to be accurately stated- their probable age and causes to be noted.	On examination no injuries and ligature mark / abrasion of ligature over neck or any other injury externally over any part of body not detected.
20	Thorax -	

(a)	Walls, ribs, cartilages	Intact
(b)	Pleura	Intact and congested
(c)	Larynx, Trachea and Bronchi.	After reflecting skin and platysma from neck region and after reflecting sternocleidomastoid and posterior belly of omohyoid muscle, sternohyoid dernothyzoid and thyrohyoid muscle of right side shows difuse hematoma interseting

		fbers of said muscle. On both right and left side and on right side externally hematame into the muscles fbre attached to greater cornu of hyoid bone. After reteches the muscle fbre indulging greater aroma of hyoid bone shows fracture on right side along with hematoma at the end of fracture bone with outward displacement of fractured bone. Underlying trachea intact with congested mucus and flled with whitish coloured blood tinged froth Tracheal Corlilagus intact.
(d)	Right Lung	Both lungs intact edematous and congested and on cut section blood tinged fluid oozes out.
(e)	Left Lung	-do-
(f)	Pericardium	Intact
(g)	Heart with weight	Normal size, shape. No evidence of gross pathology seen.
(h)	Large vessels	Intact and early evidence of atherosclerotic changes.
(i)	Additional remarks	Nil

22] The inquest panchanama which is at Exh.117

shows that the eyes were closed, mouth was opened and the teeth were seen. It is further stated that from the nose and mouth saliva of white colour mixed with blood was seen. The nails of both the hands were bluish in colour. 23] The learned Senior Counsel Shri Anil S. Mardikar, during his submissions, relied on the chart which is on page Judgment 26 CRIMINAL APPEAL NO.862.19.odt 456 of the well-known commentary i.e. Modi's Textbook of Medical Jurisprudence and Toxicology (24th Edition-2011). The said chart mentions various prominent features which can be seen in hanging and strangulation. The said chart is set out herein below:

	Hanging		Strangulation
1	Mostly suicidal.	1	Mostly homicidal.
2	Face - Usually pale and petechiae rare.	2	Face-Congested, livid and marked with petechiae.
3	Saliva - Dribbling out of the mouth down on the chin and chest.	3	Saliva - No such dribbling.
4	Neck - Stretched and elongated in fresh bodies.	4	Neck - Not so.
5	External signs of asphyxia, usually not well marked.	5	External signs of asphyxia, very well marked (minimal if death due to vasovagal and carotid sinus efect).
6	Ligature mark - Oblique, non-continuous placed high up in the neck between the chin and the larynx, the base of the groove or furrow being hard, yellow and parchment-like.	6	Ligature mark - Horizontal or transverse continuous, round the neck, low down in the neck below the thyroid, the base of the groove or furrow being soft and reddish.
7	Abrasion and ecchymoses round about the edges of the ligature mark, rare.	7	Abrasions and ecchymoses round about the edges of the ligature mark, common.
8	Subcutaneous tissues under the mark-White, hard and glistening.	8	Subcutaneous tissues under the mark-Ecchymosed.
9	Injury to the muscles of the neck-Rare.	9	Injury to the muscles of the neck-Common.

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10	Carotid arteries, internal coats ruptured in violent	10	Carotid arteries, internal coats ordinarily

	cases of a long drop.		ruptured.
11	Fracture of the larynx and trachea-Very rare and may be found that too in judicial hanging.	11	Fracture of the larynx trachea and hyoid bone.
12	Fracture - dislocation of the cervical vertebrae-Common in judicial hanging.	12	Fracture - dislocation of the cervical vertebrae-Rare.
13	Scratches, abrasions and bruises on the face, neck and other parts of the body-Usually not present.	13	Scratches, abrasions fngernail marks and bruises on the face, neck and other parts of the body-Usually present.
14	No evidence of sexual assault.	14	Sometimes evidence of sexual assault.
15	Emphysematous bullae on the surface of the lungs-Not present.	15	Emphysematous bullae on the surface of the lungs-May be present.

24] As far as the postmortem report is concerned, it is

found that mouth partly opened with tongue inside mouth and mouth and nostrils shows blood tinged froth oozing out. The said sign is consistent with hanging and not with strangulation. Abrasions of ligature over neck or any other injury externally over any other part of body, not detected. The said sign is also consistent with the hanging and not with strangulation. However, some of the signs, as reflected in the postmortem report, are consistent with the prosecution case of compression of neck i.e. strangulation.

25] It is also important to note that the evidence of Dr.

Mohsin Khan Ibrahim Khan, who is examined as witness no.1 for the defence. He treated the deceased at Government Hospital, Akola. In his deposition, he has stated that the deceased was admitted in the hospital at 11.20 pm and there was alleged history of hanging with alcoholic intake. He found that there were ligature marks on left and right neck of the deceased and accordingly the same are mentioned in the medical case papers. He further stated that during the time when the deceased was treated in the hospital even the ENT Surgeon was also called and he also endorsed that ligature marks are found. He further stated that the patient was treated up to 12.45 am and he died at 12.45 am. He further stated that provisionally he has given his opinion of death of the deceased as hanging with alcoholic intoxication. He has further stated that whatever marks were

found on said patient were mentioned in bed-head ticket at Exh.92. Actually the said bed-head ticket is exhibited as Exh.121 and wrongly mentioned in the evidence of DW-1 as Exh.92. A perusal of the said bed-head ticket at Exh.121 shows that DW-1 i.e. intern doctor made entry regarding ligature mark at right side and left side of neck and also the ENT also mentioned following remark:

"L/E-Ligature mark (+) ht. on rt. side + left side of neck"

Thus, it is clear that not only the DW-1 Doctor, who was intern but also ENT has put up the said remark in the bed-head ticket at Exh.121. Thus, it can be said that there is some material to show that the ligature marks are found on the neck of the deceased, whereas the postmortem report records there are no ligature marks. It is also to be seen that as per the evidence of PW-5-Dr. Dipak Vijayrao Gulhane, the cause of death of the deceased was due to compression of neck and he has in the cross-examination stated that in such type of injuries there is immediate and instant death. However, it can be seen from the medical case records of the deceased that he was admitted in the hospital on 11.10.2011 at about 11.20 pm and he died on 12.45 am on 12.10.2011. The PW-2 in his evidence has stated that the deceased was alive till he was admitted in hospital. Thus, the said factual position is contrary to the evidence of PW-5 according to whom the death of the deceased is due to compression of neck and in that case the death is immediate and instant. Thus, it is seen that the medical evidence on record i.e. postmortem report (Exh.89) as well as the medical case report (Exh.121) and the evidence of PW-5 and DW-1 are contrary to each other. Therefore, we hold that the circumstances as emerging from the inquest panchanama, Judgment 30 CRIMINAL APPEAL NO.862.19.odt spot panchanama, postmortem report coupled with the medical case report are not consistent with only one hypothesis that the deceased was killed by compression of neck/strangulation.

26] Even if it is assumed that the prosecution has succeeded in proving that the deceased was killed by compression of neck then also there is no evidence regarding the author of the crime. The accused are fve persons out of which two are ladies and there is no circumstance by which it can be certainly held that one particular accused or all the fve accused have committed the crime. 27] After considering the entire evidence on record, we cannot say that all the circumstances from which the conclusion of the guilt is to be drawn are fully established. Further we cannot certainly say that the facts which are established are consistent only with the hypothesis of the guilt of the accused and the circumstances are of conclusive nature. This is not the case where all other possible hypothesis can be excluded and ruled out. It cannot be certainly said that all the circumstances which are proved point out to the only hypothesis that the accused killed the deceased. After considering the entire evidence on record, Judgment 31 CRIMINAL APPEAL NO.862.19.odt we hold that this is not a case where the chain of evidence is so complete as not to leave any

reasonable ground for the conclusion that in all human probability the act must have been done by the accused. We may also note that the evidence on record show that there was love afair/illicit relationship between the deceased and the accused no.1 and, therefore, at least the accused no.3 i.e. husband of accused no.1 has grudge against the deceased and, therefore, there is suspicion that he might have committed the crime. However, it is settled legal position that suspicion, however, great it may be, cannot take place of legal proof. We also note that as there was love afair between the accused no.1 and the deceased and as noted earlier during period of 26 minutes on 11.10.2011 just before the incident, there are total 11 calls made by both of them to each other, which shows that possibility that both of them or deceased was in disturbed mindset cannot be ruled out and, therefore, the possibility of commission of suicide by the deceased by hanging is not ruled out. In any case, it is not completely and conclusively established that crime has been committed and further it is not completely and conclusively established that all the accused are involved in the crime. Therefore, this is a case where the accused are at least entitled for the beneft of doubt.

28] Therefore, we pass the following order:

1] Criminal Appeal is allowed. The impugned

judgment and order, except for property disposal directions, are hereby quashed and set aside. The appellants are acquitted of the ofences punishable under Sections 302, 201 and 120-B r/w Section 34 of the Indian Penal code.

2] If any fne amounts are paid, same be refunded to the respective appellants.

3] Muddemal property be disposed of in accordance with the directions given in the judgment and order.

4] If not required in any other crime, the appellants be released from jail forthwith. (MADHAV J. JAMDAR, J.) (SUNIL B. SHUKRE, J.) Gulande, PS